

24TRCV03676 24TRCV03676

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-13

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Case Number: 24TRCV03676 Hearing Date: July 13, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Monday, July 13, 2026

Department M Calendar

No.

PROCEEDINGS

SureTec

Insurance Company v. David M. Arbogast, et al.

24TRCV03676

1. Dr. Ramez Elgammal, et al.'s Motion for Summary Judgment

COURT RULING

Dr. Ramez Elgammal, et al.'s Motion
for Summary Judgment is granted.

Background

Plaintiff filed the Complaint-in-Interpleader on November 1, 2024. Plaintiff alleges the following facts. Plaintiff SureTec issued Appeal Bond No. 3498705 ("Bond") in the amount of \$5,099,214. After payment of an undisputed amount, the remaining Bond funds total \$1,091,733.75. Plaintiff has

received multiple and competing claims against the funds held in connection to the Bond and has elected to assert its right interplead those funds.

The underlying

action involved a patent arbitration in which moving Defendants prevailed against non-party to the instant action James G. Robinson, Morgan Creek Productions, Inc., Cecelia, LLC, and Good Stuff, LLC ("Robinson Parties"). Ultimately, final judgment was entered in favor of moving Defendants. Moving Defendants Dr. Ramez Elgammal, et al. and opposing Defendant David M. Arbogast both made claims to the funds on deposit. David M. Arbogast is a former attorney in the firm (Steffin Azod, LLP) that represented the underlying judgment creditor. On January 14, 2026, Defendants Dr. Ramez Elgammal, et al.'s Motion for Summary Adjudication was denied on procedural grounds.

Motion for

Summary Judgment

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."

(Aguilar v. Atlantic Richfield Co.

(2001) 25 Cal.4th 826, 843.) "Code of

Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is

always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005)

128 Cal. App. 4th 1510, 1519.) A

defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be

established, or that there is a complete defense to the cause of action." CCP § 437c(p)(2). "Once the defendant . . . has met that

burden, the burden shifts to the plaintiff . . . to show that a triable issue

of one or more material facts exists as to the cause of action or a defense thereto." CCP § 437c(p)(2). "If the plaintiff cannot do so, summary judgment should be granted." Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

"A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." Code Civ. Proc., § 437c(p)(1).

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." CCP § 437c(f)(1).

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

Request for Judicial Notice

Defendant Arbogast's request for judicial notice is granted pursuant to Evidence Code § 452(h).

Objections

Defendant Arbogast's objections 1 to 6 are overruled. Moving Defendants are not required to seek a Court order to redact portions of the

documents which were filed with the Court as the moving Defendants are not relying on the portions that were redacted as evidentiary support in their motion for summary judgment.

Motion for Summary Judgment

Defendants move for summary judgment as follows:

"[Defendants] move pursuant to Code of Civil Procedure section 437c for an order granting summary judgment that the Azod Parties are entitled to the interpleaded fund deposited or to be deposited in this Court by plaintiff SureTec Insurance Company and distributing the fund to the Azod Parties. The Azod Parties are the only rightful claimants to the interpleaded fund deposited or to be deposited with the Court under Code of Civil Procedure section 386 and, accordingly, the Court should release the interpleaded fund to the Azod Parties. Defendant David M. Arbogast has no claim or right to the interpleaded fund." (Notice of Motion, p. 2, lines 5-11.)

The Court addresses the procedural argument made by Defendant Arbogast in his opposition. First, Defendant Arbogast argues that moving Defendants have not met their procedural requirements under either CCP § 437c(f)(2) or CCP § 1008(b) in bringing this motion. "[A] party is prohibited from making, and the trial court from granting, a motion for reconsideration unless the requirements of sections 437c, subdivision (f)(2), or 1008 are satisfied. (Ibid.) Section 437c, subdivision (f)(2) provides: '[A] party may not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court, unless that party establishes to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion.'" New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 211 (emphasis in original). The Court notes that the actual statutory language is now as follows: "A party shall not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court unless that party establishes, to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion." Code Civ. Proc., § 437c(f)(2).

Moving Defendants' summary adjudication dated October 14, 2025 stated the following in the Notice of Motion:

“Arbogast’s claims for damages fail as a matter of law because there are no genuine issues of material fact that his Notice of Lien is invalid. Based on the indisputable facts, Arbogast’s Notice of Lien is invalid for three independent reasons: 1. Arbogast’s Notice of Lien is procedurally defective; 2. Arbogast is not a judgment creditor; 3. Arbogast lacks any written fee agreement as required by Business and Professions Code §§ 6147-6148. Based alone on the indisputable fact that Arbogast failed to attach an abstract or certified copy of any money judgment to his Notice of Lien as required by California Code of Civil Procedure Section 708.410(b), the Notice of Lien is procedurally defective and the Azod Parties are entitled to judgment as a matter of law.” (Notice of Motion, p. 2, lines 11-21).

While the language in the notices of both motions is not identical, both motions, for all intents and purposes, serve as a claim for the funds on deposit. Similarly, a prior motion heard on October 7, 2025, entitled “Motion for Order to Expunge First Amended Notice of Lien” also sought substantially the same relief. Thus, all three of these motions essentially sought judgment in favor of moving Defendants for the entirety of the funds deposited with the Court. Therefore, the issues sought in the prior motion for summary adjudication are similar to that sought to be adjudicated now in the instant motion for summary judgment. Thus, technically, this would run afoul of CCP § 437c(f)(2) as moving Defendants did not present any new or different facts, circumstances, or law.

However, the Court has inherent authority to consider this second motion for summary judgment. “[W]hile section 437c, subdivision (f)(2) ‘prohibit[s] a party from making renewed motions not based on new facts or law,’ it does not restrict a trial court’s inherent authority in any manner. (Le Francois, at pp. 1096–1097, 29 Cal.Rptr.3d 249, 112 P.3d 636.) Indeed, the court said, an interpretation of section 437c, subdivision (f)(2) that limited the trial court’s authority to reconsider its own rulings would raise “difficult constitutional questions”—namely, whether the statute “ ‘emasculate[s] the judiciary’s core power to decide controversies between parties.’ ” (Le Francois, at pp. 1104–1105, 29 Cal.Rptr.3d 249, 112 P.3d 636.) [¶] The Le Francois court explained that while a trial court is not required to rule on a second motion for summary judgment, courts “cannot prevent a party from communicating the view to a court that it should reconsider a prior ruling.” *Noland v. Land of the Free*, L.P. (2025) 114 Cal.App.5th 426, 437 (holding that the trial

court has inherent authority to hear a second motion for summary judgment.) Similar to Noland, in the instant action, the ruling on the motion for summary adjudication was not on the merits but simply on procedural grounds. The interests of judicial economy and efficiency favor hearing and ruling on the motion for summary judgment at this time. The Court of Appeal, in Noland, reiterated the trial court has inherent authority to reconsider its own rulings despite the statutory language of Section 437c(f)(2).

Code Civ. Proc., § 386 states, in relevant part:

“(e) Except in cases where by the law a right to a jury trial is now given, conflicting claims to funds or property or the value thereof so deposited or delivered shall be deemed issues triable by the court, and such issues may be first tried. In the event the amount deposited shall be less than the amount claimed to be due by one or more of the conflicting claimants thereto, or in the event the property or the value thereof delivered is less than all of the property or the value thereof claimed by one or more of such conflicting claimants, any issues of fact involved in determining whether there is a deficiency in such deposit or delivery shall be tried by the court or a jury as provided in Title 8 (commencing with Section 577) of Part 2 of this code.”

As noted above, the right to obtain the claims deposited on file is adjudicated with a trial or some other procedural adjudicative mechanism. Moving party has now provided competent legal authority to establish that a claim for funds deposited with the Court in an interpleader action can be resolved and adjudicated to judgment with a motion for summary judgment brought by a claimant to the interpleaded funds. *City of Morgan Hill v. Brown* (1999) 71 Cal. App. 4th 1114.

In *City of Morgan Hill*, the trial court granted summary judgment in favor of one of the interpleader defendants. The co-defendant Margaret Seltzer appealed arguing that the trial court could not grant summary judgment as to the second step of the interpleader action – the determination of the right to the interpleaded funds. The Court of Appeal held that summary judgment was indeed proper to adjudicate the right to the interpleaded funds. *Id.* at 1127-29.

Thus, as to the merits of the motion

for summary judgment, the Court determines that moving Defendant have met their initial burden to provide specific facts to show that there is no triable issue of material fact that moving Defendants are entitled to the claim for funds deposited with the Court. Opposing Defendant Arbogast did not meet his burden to show the existence of a triable issue of material fact as to the claim for funds. CCP § 437c(p)(2).

Moving Defendants have provided specific facts to establish that they are the only judgment creditors in the underlying Central District action and the only obligees named on the appeal bond. (Moving Defendants' Separate Statement of Facts and Supporting Evidence, 5-7). The underlying action involved a patent arbitration in which moving Defendants prevailed against non-party to the instant action James G. Robinson, Morgan Creek Productions, Inc., Cecelia, LLC, and Good Stuff, LLC ("Robinson Parties"). Ultimately, final judgment was entered in favor of moving Defendants and Defendant Arbogast is not named in the final judgment. (Moving Defendants' Separate Statement of Facts and Supporting Evidence, 1-6). The Robinson Parties filed a notice of appeal to the Ninth Circuit and posted an appeal bond issued by SureTec. The obligees named on the bond are moving Defendants. The Ninth Circuit affirmed the judgment, and the U.S. Supreme Court denied certiorari. (Id. at 7-8). Generally, to recover against the bond under federal law, a judgment creditor must show that the appellate court had affirmed the judgment in the judgment creditor's favor and issued its mandate. *Apple Inc. v. Samsung Elecs. Co.* (N.D. Cal. Dec. 9, 2015) No. 11-cv-01846-LHK, 2015 WL 8477855, at *6.). Here, moving Defendants have adequately satisfied this requirement.

Opposing Defendant Arbogast fails to demonstrate a triable issue of material fact with respect to any purported claims to the deposited funds. Arbogast argues that the underlying final judgment is not enforceable. However, this is not an issue that is properly before this Court. Any attack on the underlying judgment is required to be pursued in the Court which issued the judgment. The fact that the judgment also references a non-party named "Steffin Azod, LLP" is of no consequence. The underlying judgment simply states that the Robinson Parties are to "pay the Azod Parties" "by and through" their counsel of record, Steffin Azod, LLP. (Defendant's Ex. E). This, in and of itself, does not render Steffin Azod, LLP a judgment creditor nor does it show that David Arbogast, a former of Steffin Azod, LLP as a judgment creditor. Similarly, Defendant Arbogast's argument that moving Defendants lack standing to assert a claim to funds is without merit.

Moving Defendants standing is clearly established by showing that they are the sole judgment creditor and sole obligee on the SureTec appeal bond. On the other hand, Defendant Arbogast has failed to establish that he was a judgment creditor or obligee to have standing to execute the bond. Thus, opposing Defendant Arbogast provides no competent evidence to establish that he may assert a right to claim any portion of the funds on deposit with the Court.

Thus, for the foregoing reasons,
moving Defendants' motion for summary judgment is granted.

Moving Defendants are ordered to
give notice of this ruling.